WO/IRIPPL/Chakan-I-FM/CIRIPKPL/2018-19/239
Dated: Jan 03, 2019

INDOSPACE

IndoSpace Rohan Industrial Park Khed Pvt Ltd	**Name and address of Contractor :**
	NIHVA TECHNOLOGY PVT. LTD.
Plot No 428, Village - Mahalunge Ingale, Taluka-Khed	187,G-Block,Thermax chow k ,MIDC Chinchw ad,Pune-411019
Pune -410501	Pune - 411019
Maharashtra	Maharashtra, India
India	Cont No.:2066304033
GST NO : 27AADCR7203E1ZN	**GST No :** 27AAECN0437H1ZM
PAN NO :	**PAN NO : AAECN0437H**

Work Order No.	**WO/IRIPPL/Chakan-I-FM/CIRIPKPL/2018-19/239**	**Repair & Maintenance**
Description of Work	**Carrying out repairing and servicing of rolling shutter**	
Work Order Value (Including Taxes)	**Rs. 70,800**	
Additional Taxes Details	**CGST CGST Input-MH @ 9%**	
Additional Taxes Details	**SGST SGST Input-MH @ 9%**	
Total Tax Amount	**Rs. 10,800.00**	
Total WO Value:	**(Rupees: Seventy Thousand Eight Hundred)**	**Rs.70,800**

Please arrange to execute the follow ing at our site Indospace Industrial Park Chakan-I, Common Infra RIPKPL ANNEXTURE ATTACHED :

Annexure Forming Part of WO	1> Annexure 1 for T&C
2> Annexure	2 for B.O.Q
3> Annexure 3 for Particular T&C	3> Particular T&C: a) Scope of Work b) Payment Terms

Date of Commencement:- Jan 01, 2019	Date of Completion:- Jan 25, 2019

Note:-

1>Please Indicate the above Work Order No. on all invoices, delivery challans and correspondence.
2>Please return the duplicate of this order duly signed.
3>Detailed Terms and conditions as per enclosed and Technical Specifications.

I have read all the terms & conditions and this contract is hereby accepted.

4/1/18

AUTHORISED SIGNATORY COMPANY
For IndoSpace Rohan Industrial Park Khed Pvt Ltd

Date :
Signature:
Designation:
Seal Of the Company:

Indospace Rohan Industrial Park Khed Private Limited

Date :
Signature:
Designation :
Seal Of the Company :

AUTHORISED SIGNATORY CONTRACTOR
For NIHVA TECHNOLOGY PVT. LTD.

Annexure - I

1. **Rates**

The item rates given in BOQ shall be deemed to be inclusive of,

a. Cost of plant / equipments required for erection, scaffolding and temporary supports.
b. Cost of shifting and storing of materials as many number of times and in as many batches as may be required during the currency of the contract.
c. Cost of all the materials, labour, tools, tackles and plant, scaffolding, supporting and any other implements and equipment as may be required to complete the w ork in all respects. The contractor shall be allow ed to remove such implements after satisfactory completion of w ork.
d. Cost of labour, supervisory staff, design staff and all other manpow er as are required to fulfill all obligations under this contract, including all direct, indirect, incidental cost of employing such manpow er and cost of all the preparatory w orks required to complete the w ork successfully.
e. Cost of supervision including all cost of technical manpow er required for testing and commissioning of the system and balancing of all equipments on completion.
f. The w ork has to be completed strictly w ithin time schedule required by the ow ner and time shall be the essence of the contract. Cost of any overtime, extra incentives and night w ork is therefore deemed to be included in the said item rates.
g. Cost of protecting w orks from any damage, pilferage or loss till the time w orks are handed over.
h. Cost of w astage, breakages.
i. Cost of insurance of the w ork and insurance as required under Workmen's Compensation Act including CAR Policy.
j. Cost of labour insurance, ESIS and all other costs required to be incurred for the labour under various labour law s.
k. Cost of all safety measures to be adopted at site.
l. Clearing the sites to the entire satisfaction of the Ow ner as and w hen directed by Ow ner and after completion of w ork.
m. All the w orks to be carried out under this Work Order shall be fully insured by Contractor upto commissioning during w hich Contractor shall indemnify and save harmless the Ow ners from any loss or any charges or suits or legal action brought against them on account of any injury to or damage or loss of property of the Ow ner or of any third party caused directly or indirectly due to w ork to be carried by Contractor.
n. All the w orkers employed by Contractor shall be insured by Contractor w ho shall indemnify and save harmless the ow ners from any injury or damage or loss of property caused directly or indirectly due to w ork carried out by Contractor.
r. Contractor shall observe all precautionary safety rules, and law s in force as per EHS Plan for carrying out the w orks and obtain all necessary permissions from local Government authorities in confirmation of having carried out the w ork in accordance w ith the condition of building permissions and fire safety codes and regulations.
s. All the packing material and other w aste resulting from this w ork shall be removed by Contractor from site as and w hen required and site shall be kept clean during Construction / Installation.
t. Cost of carrying out various tests as may be required from time to time to ascertain that w ork is carried out as per specifications and that materials used are as per approved standard/quality.
u. Cost of distribution of pow er required for the w ork.
v. The contractor shall be paid only for the completed items.
w. For all matters pertaining to this w ork order including certification of measurements, approval of materials and approval of w orks, the ow ner shall nominate his representative in w riting to the contractor. In absence of such nomination by the ow ner, the authority for certification / approval of all the matters pertaining to this w ork shall rest only w ith the ow ner's Facility Manager. Certification by any other entity should be deemed as invalid and w ill not be entitled for any payment against such w ork or material certified at site.

2. **Taxes and Duties**

The finalized amount includes all materials, labour, tools, tackles and plant, loading, unloading, scaffolding, supporting and any other implements and equipment as may be required to complete the w ork. The finalized amount is inclusive of packing & forw arding, transportation, excise, CST/VAT, Octroi, transit insurance, Service Tax and all other taxes, duties, levies, charges and surcharges, PF, ESIC etc. as applicable are included in the finalized amount. The contractor w ill have to furnish the proofs regarding the payments tow ards statutory taxes and duties including VAT / Composite VAT and Service Tax for the preceding months along w ith the bill for the month. PF & ESIC challans of your w orkmen w orking at site shall be submitted w ith the bills.

It w ill be incumbent on part of the contractor to interpret the law s concerning taxes and duties correctly and evaluate the liabilities of taxes and duties, w hich are mentioned in Bill of Quantities. The contractor shall not be entitled for any additional amount due to misinterpretation of law s regarding taxes and duties and w rong evaluation of liabilities of taxes and duties on his part.

3. **Commencement and Completion of Work**

The time and quality of w ork shall be essence of the contract. The date of commencement of the w ork shall be date of WO issued to you. The w ork shall be completed as per the schedule given by the Facility Manager at site.

4. **Payment Terms**

100% payment shall be released w ithin 30 days after completion of w ork in all respect. You have to submit the correct Invoice alongw ith delivery challans duly signed and stamped by security at site.

5. **Adequacy of Contractor's Resources**

The Contractor shall provide adequate resources to ensure timely completion of each milestone of the w ork schedule approved by the Ow ner.

6. **Escalation**
The prices shall remain firm till the completion of the w ork and no escalation shall be applicable.

7. **Measurements**
The payment for any completed w ork shall be on the basis of the joint measurements as certified by the ow ner's Facility Manager as per actuals.

8. **Labour Laws**
In the evaluation of your rates for the various items of w ork, you have taken into account all the provisions of Labour Law s pertaining to Minimum Wages Act and Industrial Disputes Act and Employees Provident Fund and Miscellaneous Provisions Act and Child Labour Act as applicable as on date to the construction labour and your personnel. The liability for compliance w ith all these law s rest entirely w ith you and you shall indemnify us completely on this account. You w ill furnish us all necessary details about your labour and other personnel employed on the project as and w hen required by us in compliance w ith the above requirements. The contractor is required to submit the documentary evidences monthly and along w ith each bill, for the compliances w ith Employees Provident Fund and ESIC Acts.

9. **Insurance**
You w ill be required to obtain Workmen's Compensation Policy and Contractor's All Risk Policy jointly in the name of the Employer covering the entire duration of the w ork w ithin fifteen days from the date of this w ork order and furnish us the documents w ithin seven days thereafter.

10. **Safety Precautions**
You shall observe all necessary safety precautions to safeguard your personnel, plant, machinery, other personnel, equipments and completed w orks at site as per the EHS Plan. You shall remain solely liable for any claims or damages arising out of non-compliance of such safety precautions and w ould indemnify us from any such claims or damages.

11. **Safety Breach**
The contractor shall organize his operations in a w orkman like manner and take all necessary precautions to provide safety and prevent accidents on the site to both, persons and property. The same is applicable to his sub contractor/s, if any. Any accident taking place during the tenure of his contract, causing any injury to the life of any individual shall be treated as breach of provisions of the safety clause of the contract and the contractor w ill be liable for the recovery of damages by the ow ner.

12. **Environmental Precautions**
You shall observe all necessary precautions and take all necessary measures to ensure that your personnel, w orkers, subcontractors or suppliers as w ell as equipments and vehicles norms regarding emission levels and noise levels as laid dow n by the statutory authorities shall be strictly adhered to. You w ill similarly observe all norms regarding disposal or treatment of all types of w aste matter and shall be entirely responsible for any claims, damages or penalties in event of non-compliance. You shall indemnify us from any and all claims, damages or penalties and w ill remain liable for the losses caused to us as a result of your non-compliance of the said requirements.

13. **Indemnity Bond**
Contractor shall indemnify Ow ner and shall keep them indemnified and save harmless from any losses, costs, suits, charges or legal actions brought against them due to any injury or damage to the property or loss of life of their employees/customers or any other individuals or animals visiting the premises caused due to construction activity carried out by yourself throughout the period of construction and till such time the site is completely cleared and handed over by you. Similarly you w ill also indemnify the ow ner against all the risks, costs, law -suits or any other proceedings brought against them due to your non-compliance of rules and regulations laid dow n by Government, Statutory or Local bodies including ESIC, PF and Safety during the course of the contract.

14. **Mobilization of Contractor's Plant, Equipment, Personnel etc.**
You shall be mobilizing to the site adequate plant and machinery and provide necessary supervision for fulfillment of the contract and timely completion of the job as per the requirement and w ork schedule. You shall be permitted to plan your activities and for deployment of staff, labour, plant etc. as per the construction schedule, to ensure satisfactory execution of the w ork and also be permitted to remove extra materials / plants etc., from the site of w orks, if required due to tapering of w ork etc. You shall co-operate w ith other contractors executing w ork at the site and permit them use of w orking space etc. in the building so long as it does not hinder your progress.

15. **Facilities to contractor**
a> Drinking w ater for labour shall be provided free of cost at site at one point.
b> Electricity for the w ork shall be provided free of cost at site at one point. The distribution of electric supply as required for w ork shall be done by you at your cost from a licensed electrician. The ow ner shall not be responsible for continuity of electrical supply and in the event of its failure the contractor shall be required to make his ow n standby arrangements at his ow n cost. The contractor shall be responsible for safety of electrical installations and w ill get the same certified by electrical inspector as per the requirement of Indian Electricity Act.

16. **Sufficiency of offer**
It is expressly understood that your representatives have visited the site(s) of w ork and have acquainted you to the conditions thereof. It is also expressly understood that you have taken into account all factors for completing the w orks as per the schedule, in all respects w hile fixing your rates for different items. If any w ork is required to be carried out to complete the w orks described in the schedule of w orks but not expressly mentioned therein you w ill be deemed to have taken cost of such w orks into account in your pricing and nothing extra w ould become payable to you.

17. **Inspection and Testing**
The Ow ner or his authorized representative shall have full pow er to inspect any portion of the w ork or examine the materials and w orkmanship at the contractor's w orks or at any place from w hich the materials or equipments are obtained. Acceptance of any materials or equipments shall in no w ay relieve the contractor of his responsibility for meeting the requirements of the specifications.

18. **Works to be Protected**
a> All the materials and finished or unfinished w ork shall be protected by the Contractor at his cost till the w ork is taken over by the Ow ner.
b> Receiving part of full payment for material or any part of incomplete/completed w ork shall not absolve the Contractor from his responsibility to safeguard such w orks from possible damage due to site conditions.

19. **Works to be opened for Inspection**
i> The Contractor shall provide all facilities to the Ow ner's representatives for inspection of the w ork or any part thereof.
ii> The Contractor shall give all information and access to Ow ner's representatives.
iii> In the event of Ow ner requiring any documents to verify specifications or other details pertaining to any w ork or part(s) thereof then

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the Contractor shall promptly provide such documents.

20. **Termination of Contract**

We w ill have the right to terminate the contract after giving one w eek notice, in the event of your failure to carry out the w ork as per the schedule or to maintain the acceptable quality of the w orkmanship or to observe the safety precautions at site or non-compliance of rules and regulations of local and government bodies or non-compliance of any other conditions required under the agreement. In such event the contractor shall not be liable for any payment for the w ork carried out by him.

21. **Anti-Corruption**

The Contractor represents that they have zero tolerance of bribery, fraud and corruption and agree that it shall comply w ith the follow ing during the contract period. Any failure by the Contractor to comply w ith the follow ing w ill constitute a breach of this contract and w ill entitle the Ow ner to terminate this Contract in accordance w ith Clause 20.

The Contractor undertakes and w arrants to the Ow ner that neither it nor any representative of the Contractor or their group, nor any agent, consultant or other intermediary acting on behalf of the Contractor shall, directly or indirectly, in relation to this Contract give, promise or attempt to give, or approve or authorize the giving of, anything of value, including by transferring all or part of the payments payable under the Contract, to:

a>any employee, officer or director of or any person representing the Ow ner or their group;

b>any other person, including any Public Official;

c> a political party or a labour union controlled by any Government or political party; or

d> a charitable or other organization, or an officer, director or employee thereof, or any person acting directly or indirectly on behalf of the same;

for the purpose of (i) securing any improper advantage for the Contractor or their group; (ii) inducing or influencing that Public Official improperly to take any action or refrain from taking any action in order for the Contractor to obtain or retain business, or to secure the direction of business or (iii) inducing or influencing that Public Official to use his/her influence w ith any Government or public international organization, or any or any department, agency or other instrumentality thereof, for any such purpose.

The Contractor agrees and undertakes that they w ill keep and maintain accurate and reasonably detailed books and financial records in connection w ith their performance hereunder, and payments made or received in connection w ith the Contract. Upon request, the Ow ner or their group shall have the right to audit and examine the relevant books and financial records to test compliance w ith this Contract and the representations, w arranties and undertakings herein. The Contractor shall provide any information and assistance reasonably required in connection w ith such an audit, including access to its key personnel.

"Public Official" means any (I) officer or other person employed in any capacity (i) at any level of Government, (ii) any official or employee of a labour union controlled by any Government or political party, or (II) any candidate or officer or other person employed by a political party, or (III) any person acting in any official capacity for or on behalf of any person or organization listed in (I) or (II);

22. **Arbitration :**

In the event of any dispute or difference arising under this Contract, the matter shall be referred to the Arbitrators one each nominated by the Ow ner and Contractor from their respective organizations. In case the said Arbitrators are not able to settle the dispute by themselves, the matter shall be referred to the Arbitrator mutually nominated by the Ow ner and the Contractor, and his decision w ill be final. Subject to as aforesaid the Arbitration Act, 1996 and the rules there under and any statutory modification thereof for the time being in force shall be deemed to apply to the Arbitration proceedings under this Contract.

23. **Jurisdiction**

This contract shall be governed by the law s of India for the time being in force. The Courts of Mumbai only shall have jurisdiction to deal w ith and decide any legal or dispute arising out of this Contract.

24. **Acceptance Criteria**

The final acceptance of the w ork shall *be subject to :*

i>Certification by Facility Manager that w ork is carried out as per contract specifications and highest engineering practice.

ii>The test if any prescribed by Ow ner/Consultants.

Please sign the duplicate of this work order as a token of your acceptance and return the same for our records. For all project related matters you shall address all your correspondences to our Facility Manager.

Indospace Rohan Industrial Park Khed Private Limited

Annexure 2

Sl.No	BOQ Name	Description of Item.	Work Order Qty	Unit	Rate	Amount
1	Common Infra RIPKPL					
1.1	Carrying out repairing and servicing of rolling shutter	Carrying out repairing and servicing of rolling shutter as per Annexure-III	1.000	LS	60,000.0000	60,000.00
	Total Amount - Common Infra RIPKPL					60,000.00

Indospace Rohan Industrial Park Khed Private Limited

Annexure-III

WO/IRIPPL/Chakan-I-FM/CIRIPKPL/2018-19/239

BOQ for Rolling Shutter repair & service

Project : Indospace Industrial Park, Chakan-I

Sr. No.	Description	Qty	Unit	Rate (Rs.)	Amount (Rs.)
1	**Manual Type Shutter, Size - 3200 x 3000 mm**				
i)	Tension repairing, greasing and servicing	8	Nos.	2500	20000
	Location : (11 KV),(11KV-B 04B),(11KV-B 04D)				
2	**Manual Type Shutter, Size - 2500 x 3000 mm**				
i)	Greasing and servicing	1	Nos.	2500	2500
	Location : (33/11 KV)				
3	**Manual Type Shutter, Size - 2500 x 3200 mm**				
i)	Tension repairing, greasing and servicing	3	Nos.	2500	7500
	Location : (11 KV)				
4	**Gear Type Shutter, Size - 3200 x 4000 mm**				
i)	Labour Charges for remove old waram and reinstall new waram,Patti,Guide,Bottom repairing, greasing and servicing.	1	Nos.	2500	2500
ii)	Supply of New Waram	1	Nos.	2500	2500
	Location : (33/11 KV)				
5	**Gear Type Shutter, Size - 3200 x 3000 mm**				
i)	Greasing and servicing	3	Nos.	2500	7500
	Location : (B5-A), (B5-B), (B5-C)				
6	**Gear Type Shutter, Size - 3200 x 3000 mm**				
i)	Tension repairing, greasing and servicing	7	Nos.	2500	17500
	Location : (B6-B),(B6-B ROOM),(B5-A ROOM),(B6-B-P),(11KV - ROOM),(BA=KV B5-B6)				
	Total (Rs.)				**60000**
	Add : CGST @ 9%				5400
	Add : SGST @ 9%				5400
	Grand Total (Rs.)				**70800**

For

Indospace Rohan Industrial Park Khed Pvt. Ltd.

Authorised Signatory

Indospace Rohan Industrial Park Khed Private Limited

We Accept

For

M/s. Nihva Technologies Pvt. Ltd.

Authorised Signatory